

		On its own motion, the Court continues the above motions to 10-26-23 at 10:00 a.m. in Dept C33. The Court requests that the parties appear at the 9-21-23 hearing prepare to address the following issues: • The identity of Plaintiffs' attorney, if any, going forward. • Whether Plaintiffs stipulate that service of the motions to compel before the Court was proper • If Plaintiffs do not intend to proceed with an attorney, whether Plaintiffs consent to service by email. Pursuant to Code of Civil Procedure section 1010.6(c)(3)(ii), an unrepresented party may be served electronically if they manifest "affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent." If Plaintiffs state that they are agreeable to electronic service, Plaintiffs are to file a notice of consent to electronic service. Court orders Clerk to give notice.
9	2021-01218115 <i>Raggins vs. Kia America, Inc.</i>	1) Motion to Compel Further Responses to Special Interrogatories 2) Motion to Compel Production <u>Plaintiff's Motion to Compel Further Responses to Special Interrogatories</u> Plaintiffs move to compel further responses to Special Interrogatories (SPROGs), Set One, Nos. 8-24. The Motion is GRANTED as to Nos. 8-21 and DENIED as to Nos. 22-24. First, the Court notes that Plaintiffs' counsel has filed separate statements of discovery in dispute as an attachment to their motions. In future, counsel shall file any separate statement as a separate document for the Court's review. Code of Civil Procedure section 2030.300 states in part, "(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general." SPROGs 8-13 seek information about recalls involving front axles of any Kia Forte model and any Kia front-wheel drive model. Plaintiff contends Kia vehicles have had issues with fractured front axles beginning in 2001. For purposes of this motion, Plaintiff has shown that discovery related to other Kia front-wheel drive vehicles is reasonably calculated to lead to admissible evidence regarding the

existence of a defect and Defendant's notice of the defect. (Code Civ. Proc. § 2017.010; see Hasson v. Ford Motor Co. (1982) 32 Cal.3d 388, 403–404 ["The trial court plainly had a reasonable basis for admitting evidence of the numerous failures occurring in 1965 models for the purpose of showing the nearly identical 1966 models to be similarly defective."]) Defendant is ordered to provide further responses to SPROGs 8-13, limited in scope from January 1, 2001 to present.

SPROGs 14-16 seek information about complaints related to a fracture of front axles of any Kia front-wheel drive model. For the reasons stated above, Defendant is ordered to provide further responses, limited in scope from January 1, 2001 to present.

SPROGs 17-20 ask Defendant to describe the manufacturing, inspection, and testing processes regarding the axle of the 2017 Kia Forte. Defendant contends non-party Kia Corporation designs and manufactures Kia vehicles, and Defendant Kia America merely distributes them in America. While Defendant is not required to respond to discovery on behalf of a non-party, Defendant is required to provide responsive information in its possession, custody, or control. Defendant's response is evasive. Defendant shall provide further responses to Nos. 17-20.

SPROG 21 asks Defendant to identify lawsuits against it regarding a fracture of any front-wheel drive Kia model. For the reasons stated above, Defendant is ordered to provide a further response, limited in scope to January 1, 2001 to present.

SPROGs 22-24 ask whether Defendant contends the right front axle of Plaintiff's vehicle did not fracture prior to the collision and seeks information supporting Defendant's contention. Defendant has provided substantive, Code-compliant responses. The motion is denied as to Nos. 22-24 without prejudice to Plaintiff's right to seek further information regarding this issue via other discovery methods.

Defendant shall serve further responses within 30 days of this order.

Plaintiffs' request for sanctions is granted in the amount of \$7,250, payable within 30 days of this order. (Code Civ. Proc. § 2030.300(d).)

Plaintiff's Motion to Compel Further Responses to Requests for Production, Set One

Plaintiffs' motion to compel a further response to Requests for Production (RFP), Set One, No. 15, is GRANTED.

RFP No. 15 seeks, "Any and all records of each and every complaint related to a fracture of either of the front axles (e.g., constant velocity shafts) of any Kia front-wheel drive model, including the identified model involved in this action, received by YOU and/or YOUR parent entity, at any time up to the present date."

Defendant's response is limited to complaints involving the 2014-2018 Kia Forte Model served on or before August 25, 2019. However, Plaintiff has shown that discovery related to front axle

		fractures in other Kia front-wheel drive vehicles is reasonably calculated to lead to admissible evidence regarding the existence of a defect and Defendant's notice of the defect. (Code Civ. Proc. § 2017.010; see Hasson v. Ford Motor Co. (1982) 32 Cal.3d 388, 403-404 ["The trial court plainly had a reasonable basis for admitting evidence of the numerous failures occurring in 1965 models for the purpose of showing the nearly identical 1966 models to be similarly defective."]) Defendant shall serve a further response and produce responsive documents, limited in scope to January 1, 2001 to present. Defendant shall serve a further verified response within 30 days of this order. Plaintiffs' request for sanctions is granted in the amount of \$6,250, payable within 30 days of this order. (Code Civ. Proc. § 2031.310(h).) <u>Plaintiff's Motion to Compel Further Responses to Requests for Production, Sets Two and Three</u> Plaintiffs' motion to compel a further response to RFPs Sets Two and Three, is GRANTED. Plaintiffs move to compel further responses to RFP Nos. 20-23, 26, 30, and 31-41 and DENIED as to RFPs 24 and 25. RFPs 20-23, 26, 30, and 31-41 seek documents regarding potential similar defects in other Kia models. As discussed above, Plaintiffs have shown that such discovery is reasonably calculated to lead to discovery of admissible evidence. Such discovery will allow the Court to make an informed decision as to whether defects in other models were substantially similar enough to be admissible at trial. Therefore, Defendant is ordered to serve further responses and produce documents in response to RFPs 20-23, 26, 30, and 31-41, limited in scope to January 1, 2001 to present. RFPs 24 and 25 seek documents related to Defendant's marketing of the 2017 Forte, the model purchased by Plaintiffs. These RFPs are vague and overbroad and Plaintiffs have not cited legal authority supporting such broad discovery as to Defendant's marketing materials. Therefore, the motion is denied as to RFPs 24 and 25 without prejudice to Plaintiffs' ability to conduct more narrowly tailored discovery on this issue. Plaintiffs' request for sanctions is granted in the amount of \$6,250, payable within 30 days of this order. (Code Civ. Proc. § 2031.310(h).)
10	2022-01275212 <i>Snavelly Family Trust vs. Capistrano Garden Homes Homeowners Association No. 2</i>	OFF CALENDAR